



General Assembly

February Session, 2026

Raised Bill No. 5437

LCO No. 2398



Referred to Committee on JUDICIARY

Introduced by:
(JUD)

AN ACT CONCERNING THE APPROVAL PROCESS FOR PROPOSED BUDGETS AND SPECIAL ASSESSMENTS IN COMMON INTEREST COMMUNITIES AND THE AVAILABILITY OF A LIST OF NAMES AND ADDRESSES OF UNIT OWNERS.

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 47-261e of the general statutes is repealed and the
2 following is substituted in lieu thereof (*Effective October 1, 2026*):

3 (a) (1) Except as provided in subdivision (2) of this subsection, the
4 executive board, at least annually, shall adopt a proposed budget for the
5 common interest community for consideration by the unit owners. Not
6 later than thirty days after the adoption of a proposed budget, the
7 executive board shall provide to all unit owners a summary of the
8 proposed budget, including a statement of the amount of any reserves,
9 and a statement of the basis on which such reserves are calculated and
10 funded. Simultaneously, the board shall set a date not less than ten days
11 or more than sixty days after providing the summary for either a
12 meeting of the unit owners or a vote by ballot without a meeting to
13 consider approval or rejection of the proposed budget. If, at that meeting
14 or in the vote by ballot, a majority of all unit owners or any larger

15 number specified in the declaration votes to approve the proposed
16 budget, the proposed budget shall be approved. If, at that meeting or in
17 the vote by ballot, a majority of all unit owners or any larger number
18 specified in the declaration votes to reject the proposed budget, the
19 proposed budget shall be rejected. [If, at that meeting or in the vote by
20 ballot, a majority of all unit owners or any larger number specified in
21 the declaration does not vote to reject the proposed budget, the
22 proposed budget shall be approved. The absence of a quorum at such
23 meeting or participating in the vote by ballot shall not affect rejection or
24 approval of the proposed budget.] If a proposed budget is rejected, the
25 budget last approved by the unit owners continues until unit owners
26 approve a subsequent budget. [If a proposed budget is not rejected in
27 accordance with the provisions of this subdivision, the proposed budget
28 shall be deemed approved.]

29 (2) The executive board of an association of a common interest
30 community, or of a master association as defined in section 47-239
31 exercising the powers on behalf of one or more common interest
32 communities or for the benefit of the unit owners of one or more
33 common interest communities, which community or communities were
34 established prior to July 3, 1991, and have more than two thousand four
35 hundred residential units, at least annually, shall adopt a proposed
36 budget for the common interest community for consideration by the
37 unit owners. Not later than thirty days after the adoption of a proposed
38 budget, the executive board shall provide to all unit owners a summary
39 of the proposed budget, including a statement of the amount of any
40 reserves, and a statement of the basis on which such reserves are
41 calculated and funded. Simultaneously, the board shall set a date not
42 less than ten days or more than sixty days after providing the summary
43 for either a meeting of the unit owners or a vote by ballot without a
44 meeting to consider approval or rejection of the proposed budget. If, at
45 that meeting or in the vote by ballot, a majority of unit owners actually
46 voting votes to reject the proposed budget, the proposed budget shall
47 be rejected, provided not less than thirty-three and one-third per cent of

48 the unit owners entitled to vote on the proposed budget vote at that
49 meeting or in the vote by ballot to reject the proposed budget. If an
50 association's declaration or bylaws include quorum requirements for a
51 meeting, the absence of a quorum at such meeting or participating in the
52 vote by ballot shall not affect rejection or approval of the proposed
53 budget. If a proposed budget is rejected, the budget last approved by
54 the unit owners continues until unit owners approve a subsequent
55 budget. If a proposed budget is not rejected in accordance with the
56 provisions of this subdivision, the proposed budget shall be deemed
57 approved.

58 (b) (1) Except as provided in subdivision (2) of this subsection, the
59 executive board, at any time, may propose a special assessment. Not
60 later than thirty days after adoption of a proposed special assessment,
61 the executive board shall provide to all unit owners a summary of the
62 proposed special assessment. Unless the declaration or bylaws
63 otherwise provide, if the proposed special assessment, together with all
64 other special and emergency assessments proposed by the executive
65 board in the same calendar year, does not exceed fifteen per cent of the
66 association's last adopted periodic budget for that calendar year, the
67 proposed special assessment is effective without approval of the unit
68 owners. Otherwise, the board shall set a date not less than ten days or
69 more than sixty days after providing the summary for either a meeting
70 of the unit owners or a vote by ballot without a meeting to consider
71 approval or rejection of the proposed special assessment. If, at that
72 meeting or in the vote by ballot, a majority of all unit owners or any
73 larger number specified in the declaration votes to approve the
74 proposed special assessment, the proposed special assessment shall be
75 approved. If, at that meeting or in the vote by ballot, a majority of all
76 unit owners or any larger number specified in the declaration votes to
77 reject the special assessment, the special assessment shall be rejected. [If,
78 at such meeting or in the balloting, a majority of all unit owners or any
79 larger number specified in the declaration does not vote to reject the
80 special assessment, the special assessment shall be approved. The

81 absence of a quorum at such meeting or participating in the vote by
82 ballot shall not affect the rejection or approval of the special assessment.
83 If a proposed special assessment is not rejected in accordance with the
84 provisions of this subdivision, the proposed special assessment shall be
85 deemed approved.]

86 (2) The executive board of an association of a common interest
87 community, or of a master association as defined in section 47-239
88 exercising the powers on behalf of one or more common interest
89 communities or for the benefit of the unit owners of one or more
90 common interest communities, which community or communities were
91 established prior to July 3, 1991, and have more than two thousand four
92 hundred residential units, at any time, may propose a special
93 assessment. Not later than thirty days after adoption of a proposed
94 special assessment, the executive board shall provide to all unit owners
95 a summary of the proposed special assessment. Unless the declaration
96 or bylaws otherwise provide, if the proposed special assessment,
97 together with all other special and emergency assessments proposed by
98 the executive board in the same calendar year, does not exceed fifteen
99 per cent of the association's last adopted periodic budget for that
100 calendar year, the proposed special assessment is effective without
101 approval of the unit owners. Otherwise, the board shall set a date not
102 less than ten days or more than sixty days after providing the summary
103 for either a meeting of the unit owners or a vote by ballot without a
104 meeting to consider approval or rejection of the proposed special
105 assessment. If, at that meeting or in the vote by ballot, a majority of unit
106 owners actually voting votes to reject the proposed special assessment,
107 the proposed special assessment shall be rejected, provided not less than
108 thirty-three and one-third per cent of the unit owners entitled to vote on
109 the proposed special assessment vote at that meeting or in the vote by
110 ballot to reject the proposed special assessment. If an association's
111 declaration or bylaws include quorum requirements for a meeting, the
112 absence of a quorum at such meeting or participating in the vote by
113 ballot shall not affect the rejection or approval of the proposed special

114 assessment. If a proposed special assessment is not rejected in
115 accordance with the provisions of this subdivision, the proposed special
116 assessment shall be deemed approved.

117 (c) If the executive board determines by a two-thirds vote that a
118 special assessment is necessary to respond to an emergency: (1) The
119 special assessment becomes effective immediately in accordance with
120 the terms of the vote; (2) notice of the emergency assessment must be
121 provided promptly to all unit owners; and (3) the executive board may
122 spend the funds paid on account of the emergency assessment only for
123 the purposes described in the vote.

124 (d) Notwithstanding any provision of the declaration or bylaws to the
125 contrary, at least fourteen days prior to entering into any loan
126 agreement on behalf of the association, the executive board shall (1)
127 disclose in a record to all unit owners the amount and terms of the loan
128 and the estimated effect of such loan on any common expense
129 assessment, and (2) afford the unit owners a reasonable opportunity to
130 submit comments in a record to the executive board with respect to such
131 loan.

132 (e) Unless prohibited or otherwise limited in the declaration, if the
133 executive board proposes to enter into a loan agreement on behalf of the
134 association and to assign its right to future income as security for such
135 loan pursuant to subdivision (14) of subsection (a) of section 47-244,
136 then, in addition to satisfying the requirements of subsection (d) of this
137 section, unit owners of units to which at least a majority of the votes in
138 the association are allocated, or any larger percentage or fraction stated
139 in the declaration, must vote in favor of or agree to such assignment.

140 Sec. 2. Subsection (a) of section 47-260 of the general statutes is
141 repealed and the following is substituted in lieu thereof (*Effective from*
142 *passage*):

143 (a) An association shall retain the following:

144 (1) Detailed records of receipts and expenditures affecting the
145 operation and administration of the association and other appropriate
146 accounting records, including, but not limited to, records relating to
147 reserve accounts, if any;

148 (2) Minutes of all meetings of its unit owners and executive board
149 other than executive sessions, a record of all actions taken by the unit
150 owners or executive board without a meeting, and a record of all actions
151 taken by a committee in place of the executive board on behalf of the
152 association;

153 (3) The names of unit owners in a form that permits preparation of a
154 list of the names of all unit owners and the addresses at which the
155 association communicates with the unit owners, in alphabetical order
156 showing the number of votes each unit owner is entitled to cast. Upon
157 request of a unit owner, such list of names and addresses of unit owners
158 shall be provided, or electronically transmitted, to the unit owner
159 making the request free of charge. In addition, the common interest
160 community shall include such list of names and addresses on the
161 Internet web site of such community if the community maintains such
162 an Internet web site. Any such list of the names and addresses
163 maintained on the Internet web site of the common interest community
164 shall be updated not less than annually;

165 (4) The association's original or restated organizational documents, if
166 required by law other than this chapter, bylaws and all amendments to
167 the bylaws, and all rules currently in effect;

168 (5) All financial statements and tax returns of the association for the
169 past three years;

170 (6) A list of the names and addresses of the association's current
171 executive board members and officers;

172 (7) The association's most recent annual report delivered to the
173 Secretary of the State, if any;

174 (8) Financial and other records sufficiently detailed to enable the
175 association to comply with section 47-270;

176 (9) Copies of current contracts to which the association is a party;

177 (10) Records of executive board or committee actions to approve or
178 deny any requests for design or architectural approval from unit
179 owners; and

180 (11) Ballots, proxies and other records related to voting by unit
181 owners for one year after the election, action or vote to which they relate.

This act shall take effect as follows and shall amend the following sections:		
Section 1	<i>October 1, 2026</i>	47-261e
Sec. 2	<i>from passage</i>	47-260(a)

Section 1	<i>October 1, 2026</i>	47-261e
Sec. 2	<i>from passage</i>	47-260(a)

Statement of Purpose:

To (1) require an affirmative vote of a majority of all unit owners in order to secure passage of the proposed budget or a proposed special assessment in a common interest community, and (2) improve the process that permits a unit owner to request and receive a list of names and addresses of the other unit owners.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]